

## 25STCV28722 25STCV28722

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Case Number: 25STCV28722 Hearing Date: August 11, 2026 Dept: 515

NATURE OF PROCEEDINGS: Hearing on Motion to Compel Arbitration

The Motion to Compel Arbitration filed by Parkhouse Tire Service, Inc. is granted. The action is stayed pending completion of the arbitration.

### BACKGROUND

Plaintiff Jose Martinez filed this action against Parkhouse Tire Service, Inc. (Parkhouse Tire), alleging that Parkhouse Tire terminated his employment in retaliation for his complaints about unsafe vehicle lifts and unpaid wages.

The causes of action are: (1) Violation of Labor Code Section 1102.5; (2) Violation of Labor Code Sections 6310 and 6311; (3) Violation of Labor Code Section 232.5; (4) Violation of Labor Code Section 98.6; (5) Wrongful Termination in Violation of Public Policy; (6) Failure to Pay Minimum or Contractual Wages; (7) Failure to Pay Overtime Wages; (8) Failure to Reimburse Necessary Expenses; (9) Failure to Pay Wages Due at Time of Discharge; (10) Failure to Provide Accurate Wage Statements; and (11) Violation of Business and Professions Code Section 17200 et seq.

Parkhouse Tire filed a Motion to Compel Arbitration. Plaintiff filed an Opposition.

EVIDENTIARY

OBJECTIONS

Plaintiff invokes the rule that new evidence is not permitted with reply papers. (Opp., p. 6, fn. 2.) A trial court has discretion whether to accept evidence offered for the first time in reply. (Jack v. Ring LLC (2023) 91 Cal.App.5th 1186, 1210-1211.) The supplemental declarations of Brian Parkhouse and Robert H. Rose lay the foundation for evidence Parkhouse Tire submitted with the Motion and answer objections Plaintiff first raised in his Opposition. The Court considers them for that purpose and relies on them where cited below.

#### Objection 1. Overruled. Foundation

established. Parkhouse Tire's Director of Human Resources and each of Parkhouse Tire's shop managers report to Brian Parkhouse. (Supp. Parkhouse Decl. ¶ 2.) An officer responsible for those functions may testify to the company's ordinary practice of presenting the Arbitration Agreement to new hires and placing the signed document in the personnel file. Paragraph 4 describes that practice from the declarant's knowledge and is not offered as a business record. It contains no statement that Plaintiff was given as much time as he believed he needed.

#### Objection 2. Overruled. Brian

Parkhouse is responsible for Parkhouse Tire's policies and practices governing the maintenance of employee personnel records. (Supp. Parkhouse Decl. ¶ 2.) He is therefore the custodian of those records. A custodian may testify to the identity of the signed Agreement kept in Plaintiff's file, to the date that document bears, and to his act of signing it. The Court relies on paragraph 5 for those three things and for no account of the circumstances under which Plaintiff signed. (Supp. Parkhouse Decl. ¶ 5.) Plaintiff's signature also appears on the face of Exhibit A. (Parkhouse Decl. ¶ 5, Ex. A.)

#### LEGAL STANDARD

"On petition of a party to an arbitration agreement alleging the existence of a written agreement to arbitrate a controversy and that a party to the agreement refuses to arbitrate that controversy, the court shall order the petitioner and the respondent to arbitrate the controversy if it determines that an agreement to arbitrate the controversy exists...." (Code Civ. Proc. § 1281.2.) "The party seeking arbitration bears the burden of proving the existence of an arbitration agreement, and the party opposing arbitration bears the burden of proving any defense, such as unconscionability." (Pinnacle Museum Tower Assn. v. Pinnacle Market Development (US), LLC (2012) 55 Cal.4th 223, 236.) A party meets its initial burden simply by reciting the

terms of the governing provision, or by attaching a copy of the provisions. (Sprunk v. Prisma LLC (2017) 14 Cal.App.5th 785, 793.) Once the petitioner meets its burden, “the burden shifts to the party opposing the motion to compel, who may present any challenges to the enforcement of the agreement and evidence in support of those challenges.” (Baker v. Italian Maple Holdings, LLC (2017) 13 Cal.App.5th 1152, 1160.)

## ANALYSIS

### I. Existence of the Agreement

#### A. Initial Burden

Parkhouse Tire argues that Plaintiff signed the Arbitration Agreement upon his hire and is bound by its terms. Parkhouse Tire provides the declaration of Brian Parkhouse, who attaches the executed Arbitration Agreement bearing Plaintiff’s handwritten signature. (Parkhouse Decl. ¶ 5, Ex. A.) Plaintiff does not dispute that the signature is his. He testifies that he was instructed to sign the onboarding documents and that he reviewed Exhibit A after the Motion was filed. (Martinez Decl. ¶¶ 3-4, 6.) An individual can recognize his own handwritten signature. Where a signatory to an arbitration agreement does not deny that a handwritten signature is his, his failure to recall signing creates no factual dispute about the signature’s authenticity. (Iyere v. Wise Auto Group (2023) 87 Cal.App.5th 747, 757.)

Plaintiff argues that the three-day interval between his signature and the employer’s countersignature leaves it doubtful that the parties ever formed an agreement. (Opp., p. 3:18-21.) Plaintiff signed on October 17, 2023, and Brian Parkhouse countersigned for Parkhouse Tire on October 20, 2023. (Parkhouse Decl. ¶ 5, Ex. A; Supp. Parkhouse Decl. ¶ 5.) Nothing in the Agreement conditions formation on simultaneous execution. Both parties signed, and neither withdrew before the other did.

#### B. Fraud in the Execution

Plaintiff argues that no agreement was formed because Parkhouse Tire procured his signature by fraud in the execution. (Opp., pp. 6:10-7:6.) A contract is void on that ground where “the fraud goes

to the inception or execution of the agreement, so that the promisor is deceived as to the nature of his act, and actually does not know what he is signing.” (Rosenthal, supra, 14 Cal.4th at p. 415.) The party asserting the defense must show that apparent assent “is negated by fraud so fundamental that [he was] deceived as to the basic character of the document[] [he] signed and had no reasonable opportunity to learn the truth.” (Id. at p. 425.) Misrepresentation alone does not suffice. “[I]f a party, with such reasonable opportunity, fails to learn the nature of the document he or she signs, such ‘negligence’ precludes a finding the contract is void for fraud in the execution.” (Id. at p. 423.)

Here, Plaintiff identifies no misrepresentation. His declaration states that no one at Parkhouse Tire mentioned arbitration, explained what arbitration is, or told him that the Agreement waived his right to a jury trial. (Martinez Decl. ¶¶ 7-9.) Silence about a contract term is not deception about the character of the document. Rosenthal declined to extend even a broker’s fiduciary obligations to alerting a customer “to the existence of an arbitration clause or explaining its meaning and effect.” (Rosenthal, supra, 14 Cal.4th at p. 425.) It follows then that Parkhouse Tire, which did not owe Plaintiff a fiduciary duty, was likewise under no obligation to warn Plaintiff about the nature of the Arbitration Agreement.

Nor was Plaintiff denied a reasonable opportunity to learn what he was signing. He testifies that several documents could not be taken home and had to be signed immediately, and that no one told him he could wait and consult a lawyer. (Martinez Decl. ¶¶ 4, 10.) He does not testify that he asked for time and was refused, that anyone prevented him from reading the document, or that anyone told him that it was anything other than an Arbitration Agreement. A signer’s account of feeling rushed adds nothing to the showing without evidence that the other party said or did something to hurry him. (Rosenthal, supra, 14 Cal.4th at p. 424, fn. 12.) The document is captioned “Employment Arbitration Agreement.” Its first sentence states that the parties agree to submit claims “to final and binding arbitration before a neutral arbitrator, and not to any court or during a trial by a jury or in any other forum.” (Parkhouse Decl. , Ex. A, p. 119.)

Plaintiff relies on *Najarro v.* Superior Court (2021) 70 Cal.App.5th 871. That case is readily distinguishable from this case. In *Najarro*, two of the employees there

were told that the agreements were unimportant, or that the documents concerned only insurance, and were not given sufficient time to read what they signed.

The court held that this showed at most fraud in the inducement, because neither employee claimed an inability to read the language of the agreement and each was left to review the documents on his own. (Id. at pp. 889-890.)

The employees who did establish the defense were physically prevented from reading the document, or could read neither English nor Spanish and were told to sign anyway. (Id. at pp. 887, 890-891.) Here, Plaintiff provides no evidence that anyone said anything to him about the Agreement or did anything to prevent him from reviewing the Agreement.

The Court therefore concludes that Plaintiff has not established fraud in the execution, and that the parties formed a written agreement to arbitrate.

### C. Covered Claims

The Agreement covers “any and all claims or controversies relating to EMPLOYEE’S hiring by, employment with, or the termination of employment from COMPANY.” It names among covered claims those arising under the California Labor Code, those alleging retaliation, and those alleging wrongful discharge. (Parkhouse Decl. , Ex. A, pp. 119-120.) Each of the eleven causes of action arises from Plaintiff’s employment and its termination, and the Agreement therefore covers each of them.

## II. Waiver

Plaintiff argues that Parkhouse Tire waived arbitration by litigating for eight months before serving its Motion. (Opp., pp. 7:7-10:20.) A party opposing enforcement “must prove by clear and convincing evidence that the waiving party knew of the contractual right and intentionally relinquished or abandoned it.” (Quach v. California Commerce Club, Inc. (2024) 16 Cal.5th 562, 584 (Quach).) Prejudice is no longer an element. (Id. at p. 585, fn. 5.) The inquiry looks to the words and conduct of the party seeking arbitration. (Ibid.)

Parkhouse Tire’s knowledge is undisputed. Parkhouse Tire held the signed Agreement from October 2023 forward, and it invoked the same form agreement twenty-three days after service in a separate action by another employee. (Parkhouse Decl. ¶ 5, Ex. A; Valdez Decl.

¶¶ 4-5, Exs. 2-3.) Plaintiff offers that conduct as circumstantial evidence of an intent to abandon the right here. How quickly a defendant sought arbitration against a different plaintiff asserting different claims says little about whether it abandoned the right in this case.

Parkhouse Tire pleaded the Agreement as its eighth affirmative defense on November 24, 2025. (Rose Decl. ¶ 3; Supp. Rose Decl., Ex. E, p. 18.) It said nothing further about arbitration until March 9, 2026, when it served discovery responses objecting that Plaintiff had chosen an improper forum. (Rose Decl. ¶ 4; Supp. Rose Decl. ¶ 2.) This delay is not, by itself, clear and convincing evidence of waiver. Waiver requires conduct inconsistent with an intent to enforce, and Plaintiff identifies no litigation step Parkhouse Tire took during those months beyond answering the Complaint, obtaining a two-week extension, and serving written responses to discovery Plaintiff propounded. (Opp., p. 8:16-25.) Responding to discovery an opponent serves is not an election of the judicial forum.

On March 25, 2026, Parkhouse Tire sent Plaintiff's counsel the signed Agreement and a draft stipulation to arbitrate, and filed a Case Management Statement stating that arbitration is the appropriate forum. (Rose Decl. ¶¶ 5-6, Ex. B.) At the Case Management Conference on April 8, 2026, the Court directed the parties to meet and confer before Parkhouse Tire filed its motion. (Rose Decl. ¶ 7.) Parkhouse Tire renewed the request on April 13, 2026, and Plaintiff's counsel declined on April 17, 2026, and again on May 22, 2026. (Rose Decl. ¶¶ 8-9, 11, Exs. C, D.) Parkhouse Tire served the Motion on June 3, 2026, twelve days after the final refusal. (Valdez Decl. ¶ 14.) A defendant that files its motion on the schedule the Court set has not abandoned the right.

The defendant in Quach propounded three sets of written discovery, took the plaintiff's deposition for a full day, and requested a jury trial before moving to compel thirteen months into the case. (Quach, *supra*, 16 Cal.5th at pp. 586-587.) Parkhouse Tire engaged in none of that conduct.

Plaintiff also points to Parkhouse Tire's response of "No" to Form Interrogatory No. 200.3, which asks whether any agreement governed the employment relationship. (Opp., p. 10:7-10.) The same set of responses opens with a general objection, applicable to every request, quoting the Agreement and asserting that Plaintiff had proceeded in an improper

forum. (Supp. Rose Decl. ¶ 2, Ex. E, p. 2.) The responses to Nos. 200.1, 200.4, and 216.1 identify the Arbitration Agreement. (Supp. Rose Decl. ¶ 2; Ex. E, pp. 3-4, 18.) Read with those responses, the answer to No. 200.3 addresses the terms of employment and not the forum for disputes. Plaintiff reads a further reference in the responses to a protective order with the Court or the arbitrator as showing the same ambiguity. (Opp., p. 10:5-7.) A phrase contemplating either forum, in a set of responses that objects throughout on the ground that Plaintiff had chosen the wrong one, is not clear and convincing evidence of an intent to abandon the right.

Accordingly, the Court concludes that Parkhouse Tire did not waive its right to compel arbitration.

### III. Unconscionability

Plaintiff argues that the Agreement is unconscionable and unenforceable. (Opp., pp. 10:21-15:25.) Unconscionability has both a procedural and a substantive element. (Ramirez v. Charter Communications, Inc. (2024) 16 Cal.5th 478, 492 (Ramirez).) Both must be present for a contract to be unenforceable, though not to the same degree, and they are weighed on a sliding scale under which the more substantively oppressive the term, the less evidence of procedural unconscionability is required, and the converse. (Armendariz v. Foundation Health Psychcare Services, Inc. (2000) 24 Cal.4th 83, 114 (Armendariz).) The burden of proving unconscionability is Plaintiff's. (Ramirez, supra, 16 Cal.5th at p. 492.)

#### A. Procedural

##### Unconscionability

Procedural unconscionability turns on oppression and surprise arising from unequal bargaining power, and oppression considers the time given, the pressure to sign, the contract's length and complexity, the employee's education and experience, and whether the employee had legal assistance. (OTO, L.L.C. v. Kho (2019) 8 Cal.5th 111, 126-127.)

##### Adhesion contracts in the employment

context, offered to employees on a take-it-or-leave-it basis, typically contain some aspects of procedural unconscionability, but that adhesive aspect is not

dispositive. (*Serpa v. California Surety Investigations, Inc.* (2013) 215 Cal.App.4th 695, 704.) Where “there is no other indication of oppression or surprise, ‘the degree of procedural unconscionability of an adhesion agreement is low, and the agreement will be enforceable unless the degree of substantive unconscionability is high.’” (*Ibid.*)

Plaintiff argues that the Agreement is adhesive and was imposed oppressively. (*Opp.*, pp. 11:5-12:4.) He testifies that Parkhouse Tire presented it among a set of onboarding documents he had to sign to begin work. (*Martinez Decl.* ¶ 4.) Parkhouse Tire does not dispute that the Arbitration Agreement was a condition of employment. Therefore, the Court finds that there was at least a low level of procedural unconscionability.

Here, Plaintiff shows more than bare adhesion. Kho names the time a party is given to consider the contract and the pressure exerted on him to sign it among the circumstances relevant to oppression. Parkhouse Tire offers evidence that new hires are allowed to review the Arbitration Agreement and to ask questions about it. (*Parkhouse Decl.* ¶ 4.) That evidence of ordinary practice bears on what occurred at Plaintiff’s onboarding. Plaintiff does not testify that he asked for more time and was refused, that he could not read English, or that this document in particular was rushed past him. His testimony that he received no copy of the Agreement remains uncontradicted.

Plaintiff argues surprise on two grounds. He argues first that the Agreement was inserted into an employee handbook exceeding 100 pages. (*Opp.*, p. 11:28-12:2.) However, his declaration describes no handbook and does not describe the number of pages of documents he had to sign. (*Martinez Decl.* ¶ 4.) He additionally argues that the jury waiver is buried in a prolix paragraph. (*Opp.*, p. 3:12-16.) The Agreement states the waiver in its first sentence and repeats it in a paragraph printed in capital letters. (*Parkhouse Decl.* , Ex. A, pp. 119, 122.) Exhibit A is a six-page document captioned as an arbitration agreement, paginated 119 through 124, and marked “SIGN AND RETURN” at the top and bottom of every page. (*Parkhouse Decl.* , Ex. A, pp. 119-124.) Therefore, the Court does not find any additional surprise.

Based on the adhesive nature of the contract and the pressure to sign it immediately, the Court concludes there is a moderate level of procedural unconscionability.

## B. Substantive

### Unconscionability

A term must be overly harsh, unduly oppressive, or unreasonably favorable before it is unconscionable. (Sanchez v. Valencia Holding Co., LLC (2015) 61 Cal.4th 899, 910.) “Not all one-sided contract provisions are unconscionable; hence the various intensifiers in our formulations.” (Id. at p. 911.) “The ultimate issue in every case is whether the terms of the contract are sufficiently unfair, in view of all relevant circumstances, that a court should withhold enforcement.” (Id. at p. 912.)

#### 1.

##### Scope

First, Plaintiff argues that the Agreement covers claims unrelated to his employment because it extends to disputes with Parkhouse Tire’s “parent entities, subsidiary entities, owners, directors, officers, managers, associates, and agents.” (Opp., pp. 12:13-13:12.) He relies on Cook v. University of Southern California (2024) 102 Cal.App.5th 312 (Cook).

Cook held unconscionable an agreement requiring arbitration of “all claims, whether or not arising out of Employee’s University employment, remuneration or termination,” against the university “or any of its related entities ... or its or their officers, trustees, administrators, employees or agents, in their capacity as such or otherwise.” (Id. at p. 317.) That breadth was intolerable because of the many ways a claim against USC, completely unrelated to employment, could arise, one illustration being a botched surgery at a USC hospital 15 years later. (Id. at p. 318.)

Here, the first granting sentence commits to arbitration claims “relating to EMPLOYEE’S hiring by, employment with, or the termination of employment from COMPANY.” It places the parenthetical naming Parkhouse Tire’s affiliates, owners, officers, managers, and agents inside that limitation. An officer, manager, or agent may invoke the Agreement only with respect to a dispute arising from the hiring, employment, or termination. The Cook agreement carried no comparable limitation. It

reached claims against the university's personnel, whether those claims arose out of employment and whether those persons were acting in a capacity connected to the employee.

The subsequent sentence of the Agreement does not enlarge that grant. It provides that the Agreement applies to claims "whether found in contract or tort (including personal injury) or arise under a federal, State or local statute." It then lists five categories. Every one of those modifiers sorts claims by legal theory. The sentence forecloses an argument that arbitration covers only contract claims, or only statutory ones. It says nothing about subject matter. It runs between "PARTIES," a term the first sentence defines in the same breath as the employment limitation.

The enumeration confirms the reading.

The fourth category is "[a]ny other claims or controversies of any sort relating to EMPLOYEE'S hiring by, employment with or the termination of EMPLOYEE'S employment with COMPANY." A drafter enlarging the grant beyond the employment would not make an employment-bounded catchall the residual item in the list it introduces. The fifth category, naming claims for theft, embezzlement, unfair competition, and breach of contract, is the employer's side of the same grant. An employee's opportunity to commit theft or embezzlement against his employer, or to compete unfairly with it, arises from the employment. (Parkhouse Decl. , Ex. A, pp. 119-120.)

The Agreement therefore reaches claims relating to Plaintiff's hiring, his employment, and its termination, and no others.

Even on Plaintiff's reading of the second sentence, the scope is not unconscionable on this record. Unconscionability is highly dependent on context. (Sanchez, *supra*, 61 Cal.4th at pp. 911.) The exposure that made the Cook agreement intolerable arose from the university's hospital operations. (Cook, *supra*, 102 Cal.App.5th at p. 318.) A comparable exposure was absent in *Ayala-Ventura v. Superior Court* (2026) 119 Cal.App.5th 241, where the employer provided commercial janitorial services and the employee offered no similar show of potential claims. (*Id.* at p. 257.) Parkhouse Tire restores and services commercial truck and heavy equipment tires for business customers. (Parkhouse Decl. ¶ 2.) As in *Ayala-Ventura*, Plaintiff likewise offers no examples

of claims unrelated to his employment that he might assert against Parkhouse Tire.

On either reading, the Court concludes that Plaintiff has not shown the Agreement's scope to be substantively unconscionable.

2.

Mutuality

Next, Plaintiff argues that the Agreement lacks mutuality because Parkhouse Tire's affiliates, officers, and agents may compel him to arbitrate while assuming no reciprocal obligation, and that Parkhouse Tire offers no justification for the asymmetry. (Opp., p. 13:15-27.) Unconscionability "turns not only on a 'one-sided' result, but also on an absence of 'justification' for it." (Armendariz, supra, 24 Cal.4th at pp. 117-118.) An employer imposing a one-sided term must show "at least some reasonable justification for such one-sidedness based on 'business realities.'" (Id. at p. 117.)

Cook held that an agreement conferring a significant benefit on the university's related entities without a reciprocal benefit to the employee lacked mutuality, and the related entities in that agreement were not bound to arbitrate. (Cook, supra, 102 Cal.App.5th at pp. 319, 328.) Importantly, the employee in Cook was bound to arbitrate claims against the university's officers and employees "in their capacity as such or otherwise," and to arbitrate them whether or not they arose out of the employment. (Cook, supra, 102 Cal.App.5th at p. 317.)

The breadth of the Cook arbitration agreement meant that it extended to any claim brought against the related entities, even those that had nothing to do with the plaintiff's employment. By contrast, here, the parenthetical falls within the employment limitation. An officer, manager, or agent may invoke the Agreement only as to a dispute arising from the hiring, employment, or termination that Plaintiff has already agreed to arbitrate with Parkhouse Tire. The parenthetical adds persons who may compel arbitration; it adds no subject matter to what Plaintiff gave up.

It was on this basis that the court in

Ayala-Ventura distinguished Cook. (Ayala-Ventura v. Superior Court (2026) 119 Cal.App.5th 241, 258.) The court further rejected the argument that an employer's failure to require its employees and agents to arbitrate their claims against an employee results in a lack of mutuality because those employees and agents were not a party to the agreement. (Id. at p. 259.) Armendariz conditions its demand for a business-realities justification on a term that is one-sided as between the contracting parties. Plaintiff has not shown a term of that kind.

Plaintiff also attacks the clause preserving each party's right to seek "appropriate interim injunctive relief ... before or while arbitration proceedings are pending." (Opp., pp. 13:28-14:15; Parkhouse Decl. , Ex. A, p. 122.) He argues that the clause is mutual in form and one-sided in operation because an employer is more likely than an employee to seek injunctive relief in court. A provision that "does no more than recite the procedural protections already secured by section 1281.8(b)" is not unfairly one-sided. (Baltazar v. Forever 21, Inc. (2016) 62 Cal.4th 1237, 1247-1248.) Plaintiff's authority condemns a carve-out that broadly authorized the employer to seek any type of injunctive relief in court while confining the employee to arbitration. (Carbajal v. CWPSC, Inc. (2016) 245 Cal.App.4th 227, 249-250.) This clause runs to either party and is confined to interim relief pending arbitration. It enumerates no category of claim, so it exempts none of the confidentiality and non-solicitation disputes an employer would be the one to bring.

3.

Venue

Finally, Plaintiff argues that setting the arbitration in San Diego County is unconscionable because he worked in Bell Gardens and every event underlying his claims occurred in Los Angeles County. (Opp., pp. 14:16-15:4.) The Agreement provides that "[t]he arbitration shall be held in San Diego County or some other location mutually agreed upon by the PARTIES." (Parkhouse Decl. , Ex. A, p. 121.)

Plaintiff opens the argument with Verdugo v. Alliantgroup, L.P. (2015) 237 Cal.App.4th 141, 147 (Verdugo). A party opposing a forum selection clause ordinarily bears the burden of showing that enforcement would be unreasonable or unfair. That burden is reversed where the underlying claims rest on unwaivable statutory rights, and the party

seeking enforcement must then show that enforcement will not diminish those rights. (Ibid.) Verdugo reversed the burden because a forum selection clause could otherwise send a California employee to a forum that may not apply California law, and the clause there designated Harris County, Texas, alongside a Texas choice-of-law provision. (Id. at pp. 146-147.) This Agreement places the arbitration in California, designates the California Arbitration Act as the governing procedure unless the Federal Arbitration Act applies, and directs the arbitrator to construe any covered dispute under applicable California law. (Parkhouse Decl. , Ex. A, pp. 121-122.) Enforcement diminishes no unwaivable Labor Code right, and Parkhouse Tire has met the burden Verdugo assigns it.

Here, Plaintiff offers no evidence that traveling to San Diego County would burden him. *Murrey v. Superior Court* (2023) 87 Cal.App.5th 1223, on which Plaintiff relies, addressed an agreement that designated no location at all and left the choice to an unidentified dispute resolution organization, an omission the court treated as surprise bearing on procedural unconscionability. (Id. at pp. 1238, 1247.) The employee there had no assurance the arbitration would be held near her home or workplace, and the court observed that the term might have been reasonable had the employer designated a location near the workplace. (Id. at p. 1247.) This Agreement designates a county within California. Plaintiff worked in Bell Gardens, which lies in Los Angeles County. The designated forum is in the same region of the state as the workplace and is reachable by car within a few hours. (The Court takes judicial notice of the relative distance of these locations under Evid. Code, § 452, subd. (h).) While potentially inconvenient, the designated forum is not so far away as to be overly harsh or unduly oppressive to Plaintiff or unreasonably favorable to Parkhouse Tire. The Court concludes that the Arbitration Agreement is not unconscionable. Accordingly, the Motion to Compel Arbitration is granted, and the action is stayed. (Code Civ. Proc., § 1281.4.)

## CONCLUSION

The Motion to Compel Arbitration filed by Parkhouse Tire Service, Inc. is granted. The action is stayed pending completion of the arbitration.